

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: March 10, 2014

TYPE OF DOCUMENT: (☐ ORDINANCE) (☒ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (☐ CHANGEORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (☐ APPLICATIONS/LICENSES/PERMITS)
(☐ APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSOR: (ORDINANCE OR RESOLUTION) Dicky Shanor

EXACT WORDING FOR AGENDA: A Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, 3rd Filing, a replat of Deerhaven Subdivision, 2nd Filing, Laramie County, Wyoming (located at the southeast corner of the intersection of Montalto Drive and E. Fox Farm Road).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____)

CONTACT PERSON: Brett Walker PHONE: 637-6305 DEPT: Development Office

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	(☐)	(☐)	(☒)
Were Bids called for?	(☐)	(☐)	(☒)
Affected parties notified of Council procedure and dates?	(☒)	(☐)	(☐)
Has bond, insurance or other security been arranged?	(☐)	(☐)	(☒)
Have legal descriptions been checked?	(☒)	(☐)	(☐)

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The Cheyenne Planning Commission recommended approval of the above described County Expedited Preliminary Plat, with minor technical edits, advancing the Final Plat to the Governing Body, by a vote of 4 to 0, at their meeting on March 3, 2014. See the attached Staff Report for more definitive information.

Submitted by: Brandon Cammarata Title: Planning & Dev Dir. Date: March 5, 2014

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

<u>City Clerk's Office</u>	<u>Engineering Tech Branch</u>
<u>Development Office</u>	

STAFF REPORT

Deerhaven Subdivision, 3rd Filing

Summation

Expedited Subdivision Plat Process (County)

CASE NUMBER(s): UDC-14-00027

FILE CODE: DHVN-PF

PREPARED BY: Brett Walker

MEETING March 3, 2014 – Planning Commission

DATES: March 10, 2014 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Preliminary Plat Map
- Final Plat Map
- Revised Final Plat Map

RECOMMENDATION: The Planning and Development office recommends approval of the County Expedited Preliminary Plat, with minor technical edits, advancing the Final Plat to the Governing Body.

STAFF REPORT UPDATE (03/04/2014): At its regular meeting Monday, March 3, 2014, the Cheyenne Planning Commission recommended approval of the above described County Expedited Preliminary Plat, with minor technical edits, by a vote of 4 to 0, advancing the Final Plat to the Governing Body.



Looking south from Fox Farm Road, down Montalto Road

STAFF REPORT

Deerhaven Subdivision, 3rd Filing

Expedited Subdivision Plat Process (County)

CASE NUMBER(s): UDC-14-00027

FILE CODE: DHVN-PF

PREPARED BY: Brett Walker

MEETING March 3, 2014 – Planning Commission

DATES: March 10, 2014 – City Council

OWNER: Deerhaven Land Company, Inc. 307-632-2710
3701 Ridge Road
Cheyenne, WY 82001

AGENT: Casey Palma 307-634-7273
Steil Surveying Services
1102 W. 19th Street
Cheyenne, Wyoming 82001

PROJECT: Deerhaven Subdivision, 3rd Filing

WORK DESCRIPTIONS: Replat into 21 Lots to accommodate 20 four-plexes and 1 lot held in common ownership

LOCATION:

- (1) Legal Description: A replat of Deerhaven Subdivision, 2nd Filing, Laramie County, Wyoming
- (2) Location: Southeast corner of the intersection of Montalto Drive and E. Fox Farm Road
- (3) Address(es): Various

SIZE: Total site: 6.62 acres

CURRENT ZONING: MR Medium Density Residential (County)

PROPOSED ZONING: MR Medium Density Residential (County)

EXISTING LAND USE: Residential four-plexes

PROPOSED LAND USE: Residential four-plexes

Expedited Plat/UDC-14-00027/DHVN-P

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Residential	MU	County
South	Residential	MU	County
East	Residential	MU	County
West	Commercial	CB	County

EXPEDITED REVIEW: This plat is being pursued as a County expedited application, as it is within the 1-mile boundary. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design and engineering issues. In other words proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Staff recommends allowing the plat to proceed as an expedited application.

EXECUTIVE SUMMARY:

This application is to allow for the division of a single lot into 18 in order to accommodate individual ownership of 17 four-plexes, all of which are finished or nearly finished in their construction. One lot will continue to be held in a single ownership and used for access, drainage and utility purposes. The WAPA power line also runs through this commonly owned lot. 17 four-plexes are already constructed on it, as well as the detention facilities. This County subdivision was platted originally in 2010 and drainage and traffic issues were addressed at that time, and reviewed again with this proposal. The subdivision has already approached build-out.

Deerhaven 3rd Filing, was originally recommended for approval by the Planning Commission at its meeting on November 4, 2013, and approved by the Governing Body at its meeting on November 25, 2013. Given conditions placed on the plat by the County review process (see attached comments), as well as the need to add and adjust some easements and lot lines, the applicant has chosen not to record the previous plat and has submitted this new version for review. This plat of Deerhaven, 3rd Filing incorporates all of Deerhaven, 2nd Filing, not just Lot 1. These adjustments do not substantially affect what was analyzed on the previous staff report. Thus, much of the evaluation contained in this report will be familiar as it remains the same.

PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE. *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

PlanCheyenne calls out Urban Residential as the Future Land Use for this area. The Urban Residential category allows for a broader variety of residential types, including single-family residences, duplexes, patio homes, townhomes, condominiums and apartment. Supporting and complementary uses, including open space and recreation, schools, places of worship and other public or civic uses are encouraged. It is not the intent of this plan to change existing stable neighborhoods with single family residential development, except those where redevelopment is desirable.

This application is in conformance with a number of Policies outlined in PlanCheyenne.

PLANNING. *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

This application creates separate ownership for 17 4-plex structures. As previously stated, a majority of the infrastructure has already been constructed, and does not change with this County Plat. A platted easement across the proposed Lot 1 allows for continued access to each structure, as well as providing drainage mitigation and utility placement..

STANDARDS. *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

This land is being developed in the County, and there are no community facility fees due to the City. In the event that annexation of this area is applied for and approved, community facility fees may be required at the time of annexation.

The City will not have any maintenance or other responsibility for the road networks established here. A road network plan was not submitted. They will be tying into the adjacent street network, which includes Fox Farm Rd, an asphalt rural road with no sidewalk and barrow ditch, adjacent to these lots to the north and Montalto Road built to an urban street standard with sidewalk, curb and gutter. The City does not have any maintenance responsibilities for any of the roads associated with this subdivision. Montalto also connects to E. Jefferson to the south. Montalto is about a quarter of a mile from S. Greeley Highway.

PHASING. *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

No phasing is proposed.

STUDIES. *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of*

these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.

As only the lot lines are changing, and most of the construction has already occurred, no additional studies were required for this replat. All applicable studies were submitted with the first filing in 2010.

ZONING. *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

Lots already have structures on them and were reviewed for compliance with the County zoning regulations by the Laramie County Planning Department at the time of development.

SURROUNDING DEVELOPMENT. *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This plat will not have an effect on what is currently platted on this site nor will it impact the surrounding greater than it already is.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

City Surveyor: Jack Studley

1. When I add the three dimensions for Lots 2, 3, and 4, Block 2, I get a total distance of 222.95', which when used provides for a mathematical closure of the exterior boundary. The distance provided on the exterior of this subdivision boundary segment is 223.33', which creates a misclosure of 0.38'. I think the 223.33' figure provided needs to be corrected.

2. All else appears to be in order.

Fire Department: Jim Schamerhorn

Notes 3 and 4 of the plot plan indicate Fire District One will be the fire service provider and water for fire protection will be supplied by South Side Water District.

County Assessor: Clarice Blanton

Some sort of document, such as a declaration of protective covenants, should be filed indicating how ownership of Lot 1 is to be transferred and what percentage is to be attributed to each owner.

County Planning: Barbara Kloth

Due to ownership changes between 1st and 3rd Filings of the Deerhaven subdivisions the County is requiring that a revised plat for 3rd Filing be brought back before the Board of County Commissioners combining the layout, easements, and conditions of both plats which have already been approved. Third

Filing was approved on November 5, 2014, but not recorded due to these issues and conditions not yet satisfied. Therefore, the conditions which shall apply are as follows:

1. The title block of the plat shall be amended to add "Final Plat" prior to recordation.
2. Ownership on the plat shall be resolved prior to recordation.
3. Deerhaven Land Company shall be responsible for completion and certification of all drainage detention on the site, according to the existing approved Site Plan.
4. All lot owners must have an undivided interest in Block 2, Lot 1; this shall be noted on the plat.
5. All lots must meet the MR-Medium Density Residential minimum property area of 8,000 square feet for a four-plex unit.
6. Lots shall be renumbered consecutively, as a continuation from the lot numbers recorded in the Second Filing.
7. No direct access shall be allowed to or from Fox Farm except for emergency services vehicles. A barrier restricting access shall be installed to prohibit access for all other means from the apartment units into said emergency access.

Should the applicant not provide an updated plat combining the filings and conditions to the County with enough time to approve and record the plat by the April 5, 2015 deadline, Third Filing shall be declared void and will need to restart the process. The applicant and owner are aware of these issues and the process to remedy them.

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: Engineering-Drainage, Engineering-Traffic, Engineering-General, Engineering Tech/GIS, Urban Planning, MPO

AGENCIES AND REVIEWERS NOT RESPONDING: City Engineer, DEQ

OTHER COMMENTS RECEIVED: None

Encl: Preliminary Plat Map
Final Plat Map
Aerial Map

cc: Owner
Agent/Applicant
File

D. White

Date: March 5, 2014

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR DEERHAVEN SUBDIVISION, 3RD FILING, A REPLAT OF DEERHAVEN SUBDIVISION, 2ND FILING, LARAMIE COUNTY, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF MONTALTO DRIVE AND E. FOX FARM ROAD)."

WHEREAS, Deerhaven Land Company, LLC, has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Deerhaven Land Company, LLC, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, and easements; and

WHEREAS, the above described subdivision plat is within one (1) mile of the boundaries of the City of Cheyenne, Wyoming, and therefore, governing body approval is required in accordance with W.S. 34-12-103; and

WHEREAS, the above described county subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Deerhaven Subdivision, 3rd Filing, a replat of Deerhaven Subdivision, 2nd Filing, Laramie County, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF

_____, 2014.

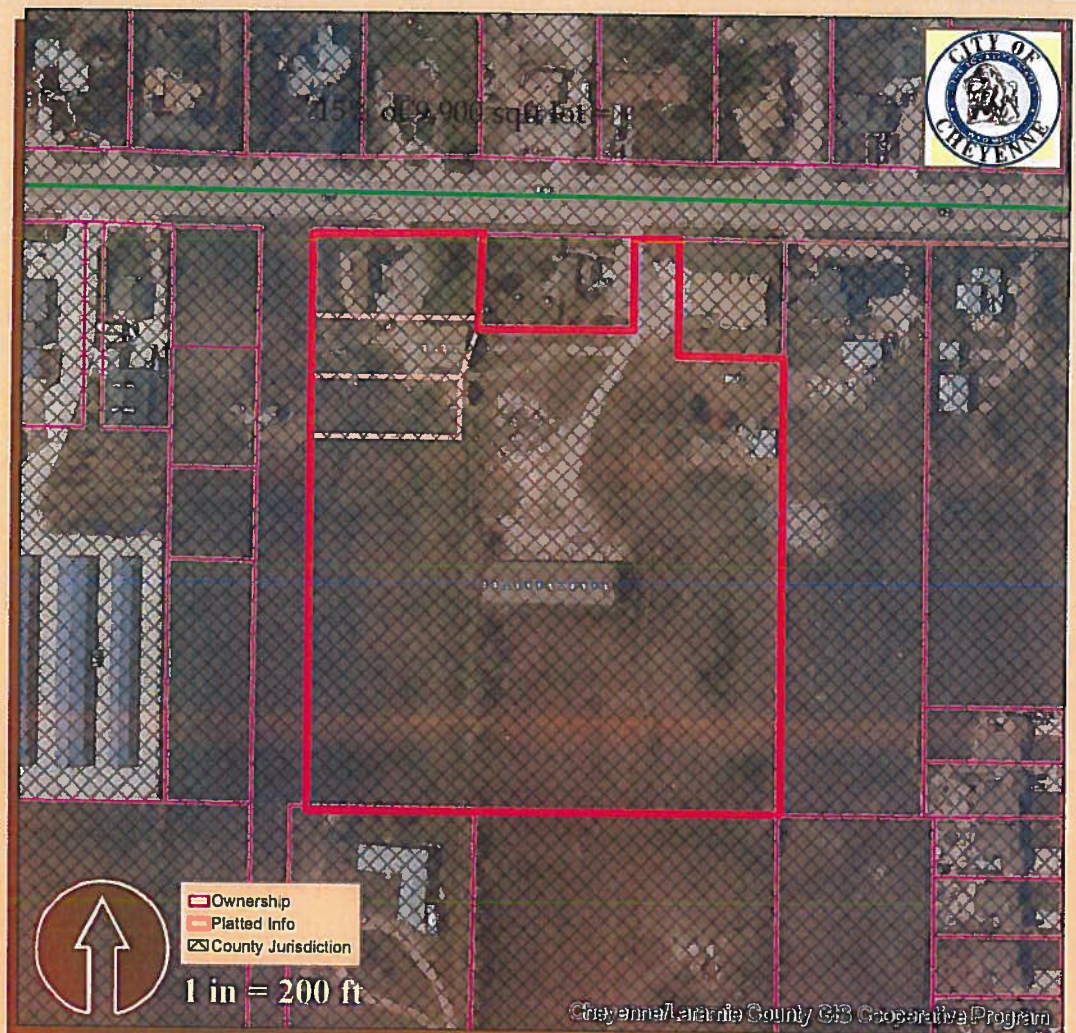
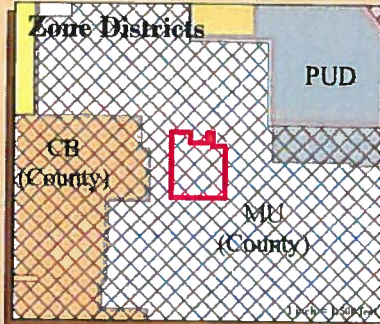
RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

Deerhaven Subdivision 3rd, Filing

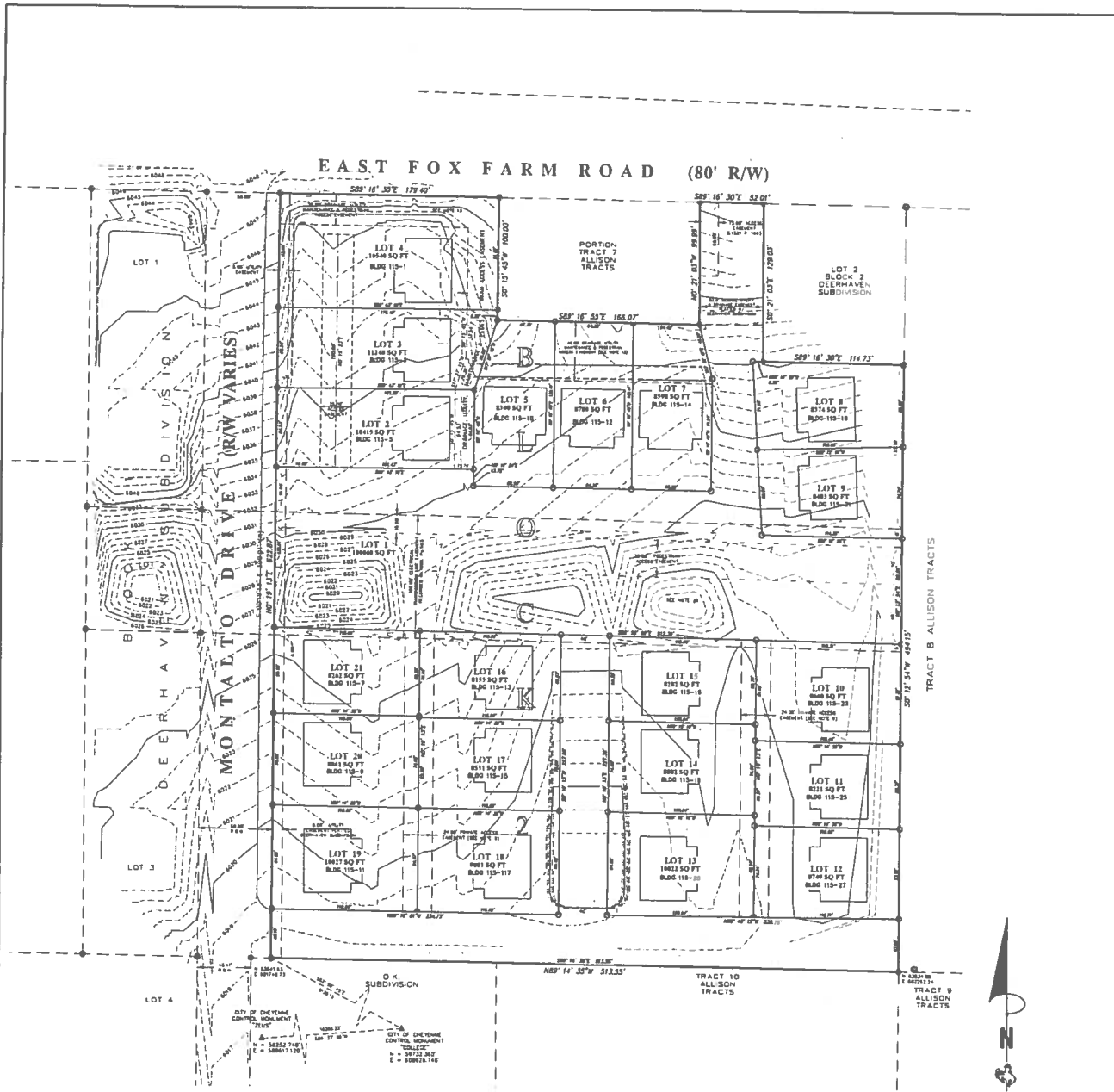
UDC-14-00027
(County) Expedited
Preliminary Plat



27 January 2014 BRW

Applicant: Deerhaven Land Company
Agent: Steil Surveying Services

This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS involves its sovereign and governmental immunity in allowing access to or use of this data.



SURVEYOR:
 STEEL SURVEYING SERVICES, LLC
 1102 WEST 19TH STREET
 CHEYENNE, WY 82001
 307-634-7273

ENGINEER:
 Benchmark Engineers, PC
 1920 THUNDER AVENUE, SUITE 620
 CHEYENNE, WY 82001
 307-634-9064

OWNER/DEVELOPER:
 DEERHAVEN LAND COMPANY INC
 3701 RIDGE RD
 CHEYENNE, WY 82001
 307-635-0878

COMPUTATION TABLE

TOTAL SITE AREA	6.92 ACRES
STREET R/W	6'
NUMBER OF LOTS	21
8 OF RESIDENTIAL LOTS	18 (INCL. 7-AM-1)
SMALLEST LOT SIZE	8041.5 SQ FT
LARGEST LOT SIZE	15041.2 SQ FT
DETENTION AREA	SET DRAINAGE STUDY FOR DEERHAVEN SUBDIVISION

ZONING

MR EXISTING ZONING
 MR PROPOSED ZONING

NOTES

- NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN FEMA SPECIAL 100-YEAR FLOOD HAZARD AREA AS SHOWN ON FIRM ROAD, 8/28/2003, DATED JANUARY 17, 2007.
- BASE OF BEARINGS - CITY OF CHEYENNE CONTROL MONUMENTS "TIE" AND "COLLECT".
- WATER AND SEWER SERVICE TO EACH LOT TO BE PROVIDED BY SOUTH CHEYENNE WATER AND SEWER DISTRICT (SCWD).
- ALL UTILITY EASEMENTS LIMITED TO CHEYENNE LIGHT, FUEL AND POWER, CENTURY LINK, OPTUM AND/OR SCOTD AND THEIR LEGAL SUCCESSORS OR ASSIGNS ONLY UNLESS SHOWN OTHERWISE.
- FWF PROTECTION PROVIDED BY LARAMIE COUNTY FIRE DISTRICT #41.
- NO STRUCTURES OR PLANTINGS ALLOWED IN THE EXISTING 100-FOOT ELECTRICAL TRANSMISSION LINE EASEMENT ON LOT 1. THIS FEDERAL EASEMENT SHALL BE COORDINATED WITH WESTERN AREA POWER ADMINISTRATION, PO BOX 3700, LITTLETON, COLORADO 80130-3700.
- ALL UNDERGROUND LOTS CORNERS, CURVE POINTS AND ANGLE POINTS TO BE SET WITH A 1/2" X 1/4" STEEL REBAR WITH A 1/2" ALUMINUM CAP STAMPED "SSS PLS 5910".
- "PRIVATE ACCESS EASEMENT(S)" GRANTED TO OWNERS OF LOTS 13 THRU 16, BLOCK 2, DEERHAVEN SUBDIVISION, 2ND FILING, AND THEIR LEGAL SUCCESSORS OR ASSIGNS FOR SOLE PURPOSE OF IMPROVED ACCESS TO LOTS 13 THRU 16 OF S&D SUBDIVISION.
- "PRIVATE ACCESS EASEMENT(S)" GRANTED TO OWNERS OF LOTS 7 THRU 12, BLOCK 2, DEERHAVEN SUBDIVISION, 2ND FILING, AND THEIR LEGAL SUCCESSORS OR ASSIGNS FOR SOLE PURPOSE OF IMPROVED ACCESS TO LOTS 7 THRU 12 OF S&D SUBDIVISION.
- "33' IF ACCESS, UTILITY & DRAINAGE EASEMENT PLATTED W/ DEERHAVEN SUBDIVISION" IS TO REMAIN.
- LOT 1 IS RESERVED FOR SHARED ACCESS ADDRESS/ACCESS AND ORIGINATOR AS SHOWN ON "BUILDING LAYOUT" AND ACCESS SURVEY. A BUILDING LAYOUT AND VEHICULAR ACCESS DESCRIPTION FOR LOT 1, BLOCK 2, DEERHAVEN SUBDIVISION, RECORDED IN THE LARAMIE COUNTY OFFICE OF RECORDS AT BOOK 3306, PAGE 787 AND SURVEY DRAWING 5, SLOTT 61 AND AT BOOK 3357, PAGE 33 AND SURVEY DRAWING 5, SLOTT 74. OWNERSHIP SHALL BE ESTABLISHED BY UNDIVIDED INTEREST OF ALL OWNERS OF LOTS CONTAINED WITHIN THE BOUNDARY OF THIS MAP. THEIR SUCCESSORS AND/OR ASSIGNS MAINTENANCE AND OPERATION SHALL BE BORNE BY THE LAND AS INDIVIDUALS OF AS AN ASSOCIATION TO WHICH THEY BELONG.
- "DRAINAGE, UTILITY MAINTENANCE & PEDESTRIAN ACCESS EASEMENT(S)" GRANTED TO THE LEGAL OWNERS OF LOT 1, DEERHAVEN SUBDIVISION, 2ND FILING, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.
- RECORDED DECEMBER 12, 2013, BK 2372 PG 1011.

VACATION STATEMENT

IT IS THE INTENT OF THIS PLAT TO VACATE DEERHAVEN SUBDIVISION, 2ND FILING, IN ITS ENTIRETY, EXCEPT ALL PREVIOUSLY PLATTED AND RECORDED EASEMENTS AS SHOWN.

LEGEND

- FOUND 1/2" ALUM CAP STAMPED "SSS PLS 5910"
- FOUND 1/2" ALUM CAP STAMPED "LS 3047"
- ▲ FOUND 1" YELLOW PLASTIC CAP STAMPED "LS 3884"
- FOUND 1/2" ALUM CAP STAMPED "LS 3884"
- FOUND 2" ALUM CAP STAMPED "LS 3884"
- FOUND 1/2" ALUM CAP STAMPED "LS 535"
- FOUND 1/2" ALUM CAP STAMPED "PLS 582"
- FOUND 1/2" ALUM CAP STAMPED "SSS PLS 2500"
- SET 1/2" ALUM CAP STAMPED "SSS PLS 5910"
- (M) MEASURED DISTANCE / BEARING FROM FIELD SURVEY
- (R) RECORDED DISTANCE / BEARING FROM RECORDED PLATS

VICINITY MAP



**PRELIMINARY
 PLAT
 FOR
 DEERHAVEN
 SUBDIVISION
 3RD FILING**

A REPLAT OF
 DEERHAVEN SUBDIVISION, 2ND FILING,
 LARAMIE COUNTY, WYOMING.

PREPARED SEPTEMBER, 2014



STEEL SURVEYING SERVICES, LLC
 PROFESSIONAL LAND SURVEYORS

1102 WEST 19TH ST CHEYENNE, WY 82001 • (307) 634-7273
 756 GILCHRIST ST WHEATLAND, WY 82201 • (307) 322-9789

REVISED 3/3/14
 12014 DMS\12017 DEERHAVEN\12017 FINAL.DWG

EAST FOX FARM ROAD (80' R/W)

VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE DEERHAVEN SUBDIVISION, 2ND FILING IN ITS ENTIRETY, EXCEPT ALL PREVIOUSLY PLATTED AND RECORDED EASEMENTS AS SHOWN

DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT, Deervhaven Land Company, Inc., a Wyoming Corporation, owner in fee simple of the following described tract of land:

All of Lot 1, Block 2, Deervhaven Subdivision, 2nd Filing EXCEPT those portions known as: Building 115-1, Building 115-3, Building 115-10, Building 115-12 and Building 115-14, and portions being further described below:

AND

B&B Wadde, LLC, a Wyoming Limited Liability Company, owner in fee simple of the following described tract of land:

A portion of Lot 1, Block 2, Deervhaven Subdivision, 2nd Filing, known as Building 115-10 and being more particularly described as follows: Point of Beginning being a point 570°43'14" 129.75' from a set property corner; Thence N85°32'02"W, a distance of 84.25'; Thence S01°01'58"W, a distance of 101.85'; Thence S88°41'32"E, a distance of 84.25'; Thence N01°01'58"E, a distance of 101.85' to the Point of Beginning. AND

A portion of Lot 1, Block 2, Deervhaven Subdivision, 2nd Filing known as Building 115-12 and being more particularly described as follows: Point of Beginning being a point 532°30'47" 72.95' from a set property corner; Thence N85°32'02"W, a distance of 84.25'; Thence S01°01'58"W, a distance of 101.85'; Thence S88°41'32"E, a distance of 84.25'; Thence N01°01'58"E, a distance of 101.85' to the Point of Beginning. AND

AND

Skye Properties, LLC, a Wyoming Limited Liability Company, owner in fee simple of the following described tract of land:

A portion of Lot 1, Block 2, Deervhaven Subdivision, 2nd Filing known as Building 115-14 and being more particularly described as follows: Point of Beginning being a point 507°34'18"E 45.56' from a set property corner; Thence N85°32'02"W, a distance of 84.25'; Thence S01°01'58"W, a distance of 101.85'; Thence S88°41'32"E, a distance of 84.25'; Thence N01°01'58"E, a distance of 101.85' to the Point of Beginning. AND

AND

B&B Wadde Investments, LLC, a Wyoming Limited Liability Company, owner in fee simple of Lot 4, Block 2, Deervhaven Subdivision, 2nd Filing A.K.A. Building 115-3

AND

Hol W. Mead and Stephanie C. Mead, Husband and Wife, owner(s) in fee simple of Lot 3, Block 2, Deervhaven Subdivision, 2nd Filing A.K.A. Building 115-3

AND

Michael Sloan and Stacy Sloan, Husband and Wife, owner(s) in fee simple of Lot 2, Block 2, Deervhaven Subdivision, 2nd Filing A.K.A. Building 115-3

Have caused the same to be surveyed, plotted and known as DEERHAVEN SUBDIVISION, 2ND FILING, and do hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed in accordance with their desires, and do hereby grant the easements for the purposes indicated herein.

The undersigned do hereby further acknowledge that this final plat is submitted to the governing body of the City of Cheyenne for approval pursuant to W.S. § 24-12-103 and the undersigned owner(s) and their legal successors and/or assigns hereto, do hereby sever and agree that, following the approval of this plat by the said Governing Body, no alteration, amendment or vacation of this plat, in whole or in part, shall be valid unless such alteration, amendment or vacation is approved by the said Governing Body.

Deervhaven Land Company, Inc., a Wyoming Corporation

By: James O. Woods III

B&B Wadde, LLC

By: Bradley K. Wadde, Registered Agent

By: Devin Wagner, Owner

B&B Wadde Investments, LLC

By: Bradley K. Wadde, Registered Agent

Hol W. Mead and Stephanie C. Mead, Husband and Wife

By: Pauline Mead as attorney-in-fact

Michael Sloan and Stacy Sloan, Husband and Wife

Michael Sloan Stacy Sloan

CITY OF CHEYENNE APPROVALS

Approved by the City of Cheyenne Planning Commission this _____ day of _____, 2014.

Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this _____ day of _____, 2014

Mayer _____ ATTEST: _____ City Clerk

CERTIFICATE OF SURVEYOR

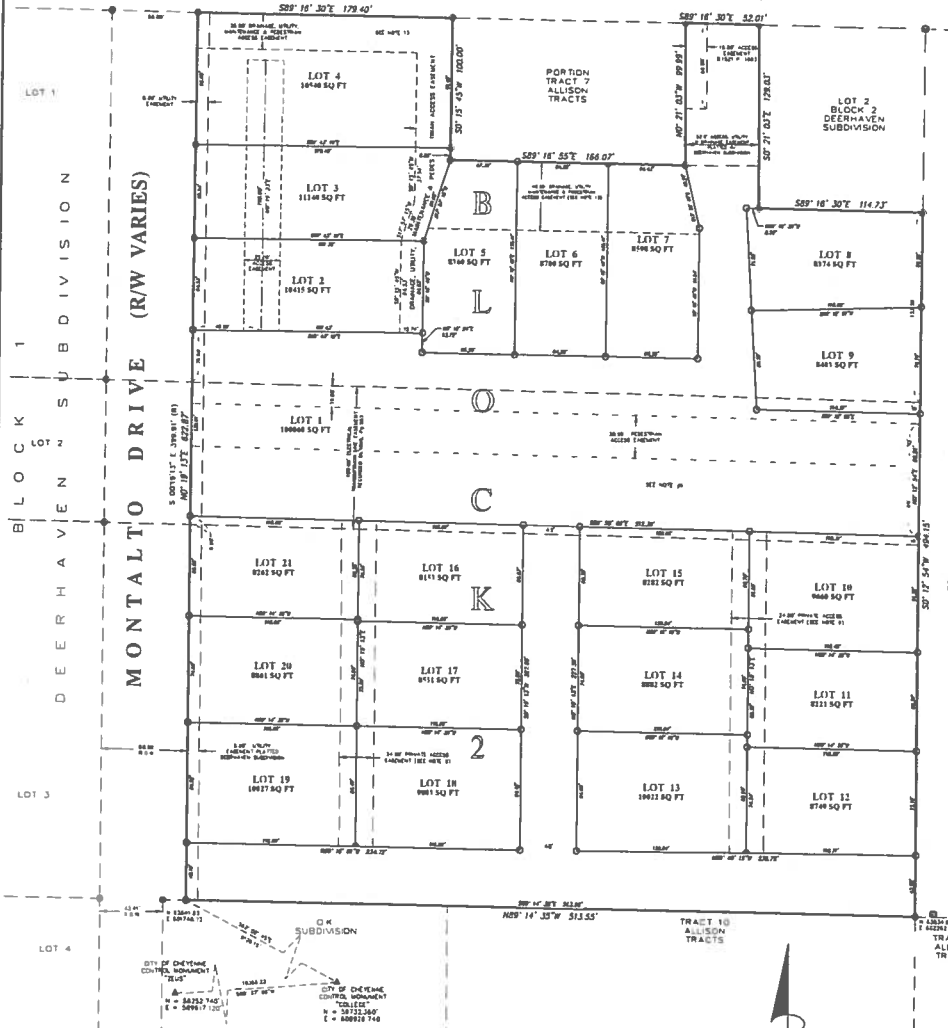
I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

FINAL PLAT OF DEERHAVEN SUBDIVISION 3RD FILING

A REPLAT OF DEERHAVEN SUBDIVISION, 2ND FILING LARAMIE COUNTY, WYOMING.

PREPARED JANUARY, 2014

STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
1108 WEST 19th ST. CHEYENNE, WY 82001 (307) 634-7873
754 GILCHRIST ST. WHEATLAND, WY 82201 (307) 322-9769



NOTES

- NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN FEMA SPECIAL 100-YEAR FLOOD HAZARD AREA - AS SHOWN ON FIRM #8001 5802121041 DATED JANUARY 17, 2007
- BASE OF RECORDS - CITY OF CHEYENNE CONTROL MONUMENTS "ZELUS" AND "COLLEGE"
- WATER AND SEWER SERVICE TO EACH LOT TO BE PROVIDED BY SOUTH CHEYENNE WATER AND SEWER DISTRICT (SCWD)
- ALL UTILITY EASEMENTS LIMITED TO CHEYENNE LIGHT, FUEL AND POWER, CENTURY LINE, OREGON AND TOP SOILS AND THEIR LEGAL SUCCESSORS OR ASSIGNS ONLY, UNLESS SHOWN OTHERWISE
- FIRE PROTECTION PROVIDED BY LARAMIE COUNTY FIRE DISTRICT #1
- NO STRUCTURES OR PLANTINGS ALLOWED IN THE EXISTING 100'00' ELECTRICAL TRANSMISSION LINE EASEMENT ON LOT 1. THIS FEDERAL EASEMENT IS A RESTRICTED AREA - ALL CONSTRUCTION ACTIVITIES WITHIN SAID EASEMENT SHALL BE COORDINATED WITH WESTERN AREA POWER ADMINISTRATION 700 WEST 37th LITTLE ROCK, AR 72601-3003
- ALL UNDEVELOPED LOT CORNERS, CURVE POINTS AND ANGLE POINTS TO BE SET WITH A "1/2" 1" STEEL REBAR WITH A "1/2" ALUMINUM CAP STAMPED "SSS PLS 3010"
- "PRIVATE ACCESS EASEMENT(S)" GRANTED TO OWNERS OF LOTS 13 THRU 18, BLOCK 2, DEERHAVEN SUBDIVISION, 2ND FILING AND THEIR LEGAL SUCCESSORS OR ASSIGNS FOR "SOLE PURPOSE" OF HORSEFEEDS TO LOT 13 THRU 18 OF SAID SUBDIVISION
- "PRIVATE ACCESS EASEMENT(S)" GRANTED TO OWNERS OF LOTS 7 THRU 12, BLOCK 2, DEERHAVEN SUBDIVISION, 2ND FILING AND THEIR LEGAL SUCCESSORS OR ASSIGNS FOR "SOLE PURPOSE" OF HORSEFEEDS TO LOTS 7 THRU 12 OF SAID SUBDIVISION
- "33' OF ACCESS, UTILITY & DRAINAGE EASEMENT PLATTED IN DEERHAVEN SUBDIVISION" IS TO REMAIN
- LOT 1 IS RESERVED FOR SHARED ACCESS/DRIVEWAY AND OR ORDRATION AS SHOWN ON "BUILDING LAYOUT AND ACCESS SURVEY" A BUILDING LAYOUT AND ACCESS SURVEY, AND "VEHICLE ACCESS DESCRIPTION" FOR LOT 1, BLOCK 2, DEERHAVEN SUBDIVISION, 2ND FILING, RECORDED IN THE LARAMIE COUNTY OFFICE OF RECORDS AT BOOK 2207, PAGE 33 AND SURVEY DRAWER 5, SHEET 81 AND AT BOOK 2207, PAGE 33 AND SURVEY DRAWER 5, SHEET 81
- OWNERSHIP SHALL BE ESTABLISHED BY UNDIVIDED INTEREST OF ALL OWNERS OF LOTS CONTAINED WITHIN THE BOUNDARY OF THIS REPLAT. THEIR SUCCESSORS AND/OR ASSIGNS, MAINTENANCE AND OPERATION SHALL BE DONE BY THE SAME, AS INDIVIDUALS OR AS AN ASSOCIATION TO WHOM THEY BELONG
- "DRAINAGE, UTILITY MAINTENANCE & PRIVATE ACCESS EASEMENT(S)" GRANTED TO THE LEGAL OWNER(S) OF LOT 1 - DEERHAVEN SUBDIVISION 2ND FILING, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS
- RECORDED DECEMBER 12, 2013, BK. 2272, PG. 1011

ACKNOWLEDGEMENTS

STATE OF WYOMING }
COUNTY OF LARAMIE } SS

The foregoing instrument was acknowledged before me this _____ day of _____, 2014 by James O. Woods III as President for Deervhaven Land Company, Inc.

Notary Public, Laramie County, WY

My Commission Expires: _____

STATE OF WYOMING }
COUNTY OF LARAMIE } SS

The foregoing instrument was acknowledged before me this _____ day of _____, 2014 by Bradley K. Wadde as Registered Agent for B&B Wadde, LLC and the same as Registered Agent for B&B Wadde Investments, LLC.

Notary Public, Laramie County, WY

My Commission Expires: _____

STATE OF WYOMING }
COUNTY OF LARAMIE } SS

The foregoing instrument was acknowledged before me this _____ day of _____, 2014 by Devin Wagner.

Notary Public, Laramie County, WY

My Commission Expires: _____

STATE OF WYOMING }
COUNTY OF LARAMIE } SS

The foregoing instrument was acknowledged before me this _____ day of _____, 2014 by Pauline Mead as attorney-in-fact for Hol W. Mead and Stephanie C. Mead, Husband and Wife.

Notary Public, Laramie County, WY

My Commission Expires: _____

STATE OF WYOMING }
COUNTY OF LARAMIE } SS

The foregoing instrument was acknowledged before me this _____ day of _____, 2014 by Michael Sloan and Stacy Sloan, Husband and Wife.

Notary Public, Laramie County, WY

My Commission Expires: _____

LEGEND

- SET 1/2" ALUM. CAP STAMPED "SSS PLS 5010"
- FOUND 1/2" ALUM. CAP STAMPED "SSS PLS 5010"
- FOUND 1/2" ALUM. CAP STAMPED "LS 3047"
- FOUND 1" YELLOW PLASTIC CAP STAMPED "LS 3084"
- FOUND 1/2" ALUM. CAP STAMPED "LS 3084"
- FOUND 2" ALUM. CAP STAMPED "LS 3084"
- FOUND 1/2" ALUM. CAP STAMPED "LS 558"
- FOUND 1/2" ALUM. CAP STAMPED "PLS 862"
- FOUND 1/2" ALUM. CAP STAMPED "SSS PLS 2500"

VICINITY MAP

FILING RECORD

RECORDED JANUARY 17, 2014, BK. 2272, PG. 1011

NOTE TO ASSESSOR / COUNTY CLERK

BY THESE PRESENTS ALL OWNERS/STAKEHOLDERS APPEARING HEREON HEREBY ACKNOWLEDGE, permit or actual dispossessions in the boundary and/or boundaries of previously owned and/or conveyed real estate parcel(s)/interests and/or actual interest in Lot 1 or said Deervhaven Subdivision(s). OWNERSHIP OF LOTS PLATTED HEREON SHALL BE ESTABLISHED AS FOLLOWS:

Ownership of LOT 1 shall be established by equal and undivided interest of all owners of lots contained within the boundaries of this plat, their successors and/or assigns.

LOTTING

LOT 2 (see DIVV.2nd and DEED rec. bk.2372, pg.1009)
Michael Sloan and Stacy Sloan, Husband and Wife
LOT 3 (see DIVV.2nd and DEED rec. bk.2372, pg.1007)
Hol W. Mead and Stephanie C. Mead, Husband and Wife
LOT 4 (see DIVV.2nd and DEED rec. bk.2372, pg.1005)
B&B Wadde, LLC
LOT 5 B&B Wadde Investments, LLC
LOT 6 B&B Wadde Investments, LLC
LOT 7 Devin Wagner (see DEED rec. bk.2372, pg.1003)
LOT 8 thru 21 Deervhaven Land Company, Inc.

REPLAT

REPLAT OF DEERHAVEN SUBDIVISION, 2ND FILING LARAMIE COUNTY, WYOMING.

PREPARED

PREPARED JANUARY, 2014

STEEL SURVEYING SERVICES, LLC

PROFESSIONAL LAND SURVEYORS

CONTACT

1108 WEST 19th ST. CHEYENNE, WY 82001 (307) 634-7873
754 GILCHRIST ST. WHEATLAND, WY 82201 (307) 322-9769